

42. Decision, etc., or the Tribunal.- The decision or orders of the Tribunal shall be by a majority of the members sitting and shall be final.

Comment

Section 42 provides for the finality of the decision of the Tribunal.

43. Bar of jurisdiction of Courts.- No suit shall be instituted or proceeding taken in respect of any matter which the Tribunal is empowered to deal with, or decide, under this chapter

Comment

Section 43 bars the jurisdiction of Courts in respect of any matters which the Tribunal is empowered to deal with or decide.

44. Relief which the Tribunal may grant.- In the case of any complaint made under Cl. (b) or Cl (c) of Sec. 36 the Tribunal may

- (i) fix such rate or charge as it considers reasonable from any date as it may deem proper, not being a date earlier to the date of the filing of the complaint;
- (ii) fix such a refund of a amount, if any as being the excess of the rate or charge fixed by the Tribunal under Cl.(i)

Section 44 enunciates the reliefs the Tribunal may grant.

45. Revision of decisions given by the Tribunal. – Where a railway administration considers that since the date of decision by the Tribunal, it may, has been a material change in the circumstances on which it was based, it may, after the expiry of one year from such date, make an application to the Tribunal and the Tribunal may, after making such inquiry as it considers necessary, vary or revoke the decision.

Comments

Section 45 confers on the Tribunal power in certain circumstances.

Appeal, an appeal lies from final judgment passed in a summary suit.- An appeal lies from the final judgment passed in a summary suit directing the defendant to pay the decree claim in default of security not having been furnished to suit under Order XXXVII rule3(2).

Plaint rejected, appeal cannot be a continuation of a non-existing thing.- The plaint had been rejected and , therefore, there was nothing before the Court.